IN THE HIGH COURT OF Delhi at New Delhi

(Civil Writ JURISDICTION)

W.P. No. _____/ 2026

BETWEEN

Ms. X
Aged 34 Years
Residing at: JanankPuri,
New Delhi …**PETITIONER**

AND

1. **Municipal Corporation of Delhi**
   Through its Commissioner
   Dr. S.P. Mukherjee Civic Centre
   New Delhi – 110002
2. **Delhi Jal Board**
   Through its Chief Executive Officer
   Varunalaya Phase II
   Karol Bagh
   New Delhi – 110005
   …Respondents … **RESPONDENT**

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA

The Petitioner submits as follows:

1. The present petition has been filed by the Petitioner, a resident of West Delhi, seeking issuance of an appropriate writ against the continued supply of contaminated and non-potable water by the Respondents, namely the Municipal Corporation of Delhi and the Delhi Jal Board. For the past sixteen months, residents in parts of West Delhi have been receiving visibly dirty and foul-smelling water which is unfit for drinking or domestic use. Several complaints and representations were made to the authorities requesting inspection and testing of the water supply, however no effective action has been taken. The failure of the

Respondents to provide safe drinking water violates the right to life under Article 21 of the Constitution of India, which has been interpreted by the Hon'ble Supreme Court to include the right to clean water and a healthy environment, inter alia in *Subhash Kumar v. State of Bihar* (1991) and *Narmada Bachao Andolan v. Union of India* (2000). The Respondents are also under statutory duties under the Delhi Jal Board Act, 1998 and the Delhi Municipal Corporation Act, 1957 to ensure safe water supply and protect public health. Being aggrieved by the continued inaction of the Respondents, the Petitioner has approached this Hon'ble Court under Article 226 of the Constitution seeking issuance of a writ of mandamus directing the Respondents to take immediate steps to ensure the supply of clean and potable water.

2. The Petitioner submits that despite repeated complaints by residents for inspection and testing of the water supply, the Respondents have failed to remedy the situation. The continued supply of contaminated water poses serious health risks and amounts to a violation of the rights guaranteed under Articles 14 and 21 of the Constitution of India. In the absence of any effective remedy and due to the persistent inaction of the Respondents, the Petitioner has been constrained to approach this Hon'ble Court by way of the present petition.

Brief Facts:

1. It is submitted that the Petitioner is a resident of West Delhi and receives water supply from the Delhi Jal Board under the civic administration of the Municipal Corporation of Delhi.
2. It is submitted that since **November 2024,** the water supplied to the Petitioner's locality in West Delhi has been visibly dirty, discoloured and foul smelling, rendering it unfit for drinking or domestic use.

   (Photographs showing the contaminated water are annexed herewith and marked as ANNEXURE – P1)
3. It is submitted that complaints were made by residents to the concerned authorities on **15.12.2024**, **10.05.2025**, and **20.01.2026**, requesting inspection of the pipelines and testing of the water supply. However, no effective remedial action has been taken.

(Copies of the complaints are annexed herewith and marked as ANNEXURE – P2)

4. It is submitted that the contamination in the water supply has persisted for more than sixteen months and the Respondents have not conducted any proper inspection or taken corrective measures to ensure safe supply of water to the affected residents.
5. It is submitted that under **Section 9 of the Delhi Jal Board Act, 1998** and **Section 42 of the Delhi Municipal Corporation Act, 1957**, the Respondents are under a statutory duty to ensure safe water supply and safeguard public health.
6. It is submitted that the continued supply of contaminated water violates the fundamental rights of the residents under **Articles 14 and 21 of the Constitution of India**, which guarantee equality before the law and the right to life, including the right to access clean drinking water and live in a healthy environment as recognized by the Hon'ble Supreme Court in *Subhash Kumar v. State of Bihar* (1991).
7. It is submitted that despite repeated complaints and the lapse of considerable time, the Respondents have failed to take adequate steps to remedy the situation, thereby compelling the Petitioner to approach this Hon'ble Court.
8. Being aggrieved by the continued inaction of the Respondents for more than sixteen months, the Petitioner has approached this Hon'ble Court under **Article 226 of the Constitution of India** seeking issuance of an appropriate writ directing the Respondents to ensure the supply of clean and potable water to the residents of West Delhi.

GROUNDS:

1. **THAT** the continued supply of contaminated and non-potable water to residents of West Delhi by the Respondents, namely the Delhi Jal Board and the Municipal Corporation of Delhi, amounts to a violation of the fundamental right to life guaranteed under Article 21 of the Constitution of India. The Hon'ble Supreme Court has consistently interpreted Article 21 to include the right to access clean and safe drinking water as an essential component of the right to live with dignity.

2. **THAT** the Respondents are under statutory obligations under Section 9 of the Delhi Jal Board Act, 1998 and Section 42 of the Delhi Municipal Corporation Act, 1957 to ensure proper water supply, sanitation and protection of public health. The failure of the Respondents to address the contamination in the water supply despite repeated complaints for more than sixteen months amounts to a breach of their statutory duties.
3. **THAT** the Hon'ble Supreme Court in Subhash Kumar v. State of Bihar (1991) 1 SCC 598 held that the right to life under Article 21 includes the right to enjoyment of pollution-free water and air for full enjoyment of life. The continued supply of contaminated water to residents of West Delhi is therefore in direct violation of the constitutional principles laid down by the Hon'ble Supreme Court.
4. **THAT** the Hon'ble Supreme Court in A.P. Pollution Control Board v. Prof. M.V. Nayudu (1999) 2 SCC 718 emphasized that access to clean drinking water is fundamental to life and that the State has a duty to ensure protection of water resources and public health. The failure of the Respondents to take effective action despite repeated complaints violates this constitutional obligation.
5. **THAT** the inaction of the Respondents in addressing the issue of contaminated water supply is arbitrary, unreasonable and violative of Article 14 of the Constitution of India which guarantees equality before the law and protection against arbitrary state action.
6. **THAT** the Respondents, being public authorities entrusted with civic administration and water supply management, are obligated to act in the interest of public welfare. The continued negligence in ensuring safe water supply to residents constitutes administrative inaction and failure of public duty.
7. **THAT** the Hon'ble Supreme Court in Narmada Bachao Andolan v. Union of India (2000) 10 SCC 664 recognized the importance of water as a basic human necessity and emphasized that access to water is essential for the enjoyment of the right to life under Article 21 of the Constitution.
8. **THAT** the persistent failure of the Respondents to take remedial action despite multiple complaints made by residents demonstrates a clear disregard for the

health and safety of the public and necessitates intervention by this Hon'ble Court under Article 226 of the Constitution of India.

9. **THAT** in view of the continued violation of statutory duties and fundamental rights of the residents, the Petitioner is entitled to seek issuance of an appropriate writ, order or direction from this Hon'ble Court directing the Respondents to immediately inspect, rectify and ensure the supply of clean and potable water to the affected areas in West Delhi.

PRAYER

WHEREFORE, in light of the above facts and circumstances, and owing to the urgency of the case of the Petitioner, the Petitioner most respectfully prays that this Hon'ble Court be pleased to:

A. Issue an appropriate writ, order or direction, particularly a Writ of Mandamus, directing the Respondents, namely the Delhi Jal Board and the Municipal Corporation of Delhi, to immediately conduct inspection and testing of the water supply in the affected areas of West Delhi and to take necessary remedial measures to ensure the supply of clean and potable water to the residents.

B. Issue an appropriate writ, order or direction directing the Respondents to identify and rectify the source of contamination in the water supply system, including inspection and repair of pipelines, storage facilities and related infrastructure supplying water to the affected localities.

C. Issue an appropriate writ, order or direction directing the Respondents to place on record before this Hon'ble Court a detailed status report regarding the condition of the water supply system in the concerned areas of West Delhi and the steps taken to ensure compliance with their statutory obligations under the Delhi Jal Board Act, 1998 and the Delhi Municipal Corporation Act, 1957.

D. Issue an appropriate writ, order or direction directing the Respondents to establish a regular mechanism for monitoring and testing the quality of water supplied to residents in the concerned areas so as to prevent recurrence of such contamination in the future.

E. Pass such other order or further directions as this Hon'ble Court may deem fit and proper in the facts and circumstances of the present case in the interest of justice, public health and protection of the fundamental rights guaranteed under Articles 14 and 21 of the Constitution of India.

Place: New Delhi

Date:

Counsel for the Petitioner

ANUSHKA SHARMA

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